

§ 1041. Required findings concerning notice. No factfinding hearing may commence under this article unless the court enters a finding:

(a) that the parent or other person legally responsible for the child's care is present at the hearing and has been served with a copy of the petition; or

(b) if the parent or other person legally responsible for the care of the child is not present, that every reasonable effort has been made to effect service under section ten hundred thirty-six or ten hundred thirty-seven.